



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

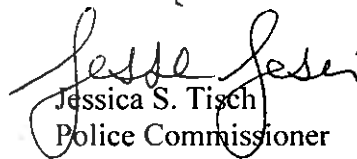
Re: Disciplinary Case No. 2022-24950 (PODS Case No. C-031966) regarding
Detective Michael Ustick, Tax No. 948517

Date: June 4, 2026

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Detective Ustick used offensive language and was discourteous towards an individual. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, the Charges and Specifications in this matter will be dismissed and Detective Ustick will receive Training, as negotiated by CCRB.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



MOHAMMAD KHALID
INTERIM CHAIR

March 26, 2025

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Detective Michael Ustick
(Tax Reg #948517, CCRB #202002070)

Commissioner Tisch:

A negotiated settlement of Training was agreed upon and signed by all parties on February 24, 2025. Assistant Deputy Commissioner - Trials Vanessa Facio-Lince endorsed the negotiated settlement on March 20, 2025.

On March 11, 2020, at around 3 p.m., [REDACTED] and her friend were shopping at the Primark store at the Staten Island Mall. A Primark security guard called 911 to report that Ms. [REDACTED] friend had shoplifted. Ms. [REDACTED] friend fled from the scene and Ms. [REDACTED] followed her. A male civilian bystander outside the mall ran after Ms. [REDACTED] and her friend and recorded them on his cell phone while waving a stick at them.

The bystander flagged down two officers from the 121st Precinct who stopped Ms. [REDACTED] Detective Michael Ustick, who was a police officer at the time, and other officers from the 121st Precinct also arrived in response to the radio job. One of the officers told Ms. [REDACTED] that the bystander who chased her said he saw her steal from Primark, and asked if the officers could search her shopping bag, which also had her own purse with all her belongings inside it. Ms. [REDACTED] refused to let the officer search her bag, and said she was not stealing, and that the bystander had hit her with a stick.

The officer told Ms. [REDACTED] that she was captured on the man's cell phone footage. Ms.

█████ asked if she was captured stealing, and the officer said no. Ms. █████ asked why she was being stopped if the footage did not capture her stealing. Ms. █████ handed her shopping bag to the officer to search it and compare the items in the bag to the receipt. While conducting this search, the officer pauses multiple times to say that Ms. █████ has receipts for all the items in the shopping bag.

During her interaction with the officers, Ms. █████ attempted to break free from being handcuffed and she was yelling, cursing, and expressing anger at both the officers and the bystander who she alleged had assaulted her with a stick and who officers were not questioning or detaining.

In Detective Ustick's BWC footage, Ms. █████ stands next to the hood of a police car and Detective Ustick stands about five feet away from her, they argue about the fairness of the officers not investigating her allegation that the bystander had hit her with a stick prior to their arrival. Ms. █████ tells Detective Ustick in a raised voice that he is being an "asshole." Detective Ustick responds, "I think you're being an asshole." At this point, Ms. █████ had not made any movements towards Officer Ustick or attempted to flee.

Detective Ustick acknowledged calling Ms. █████ an "asshole." He said he called her an "asshole" because she called him that first, and he was pointing out to her that her behavior at the time was unacceptable.

NYPD Patrol Guide Procedure 200-02 states that officers must "render [their] services with courtesy and civility," and that they must "maintain a higher standard of integrity than is generally expected of others". Disciplinary Court No. 2018-18951 notes that there are certain situations where profane remarks made during a stressful or chaotic situation do not constitute misconduct. In this case, it was found that two civilians yelling at each other did not constitute a situation in which profanity was justified.

Detective Ustick's use of profanity in telling Ms. █████ that she was "being an asshole" was neither courteous nor civil. At the time, Ms. █████ had been yelling while standing next to a patrol car. Despite Ms. █████ calling Officer Ustick an asshole first, officers, Detective Ustick included, are required to maintain a higher standard of integrity. Detective Ustick's use of profanity was discourteous and unnecessary and was not used during a particularly stressful or chaotic point in time.

In Detective Ustick's BWC footage, Detective Ustick asks Ms. █████ if she takes medication and she says no. As Ms. █████ is being placed into the patrol car, she yells at the officers that she did not steal anything and that the bystander hit her with a stick, she curses at them, and she tells them that they cannot do this. As Detective Ustick places Ms. █████ inside the car, he tells her to shut up and that she is "acting like a psycho." Detective Ustick says, "She's a psychopath," to his

fellow officers on scene.

Detective Ustick initially denied calling Ms. [REDACTED] a "psycho" or "psychopath," but upon reviewing his BWC footage, he said he told Ms. [REDACTED] she was "acting psycho" and then called her a "psychopath" to show her that by not complying with the officers' orders, she was behaving irrationally.

NYPD Patrol Guide, Procedure 203-10 prohibits officers from using "discourteous or disrespectful remarks regarding another person's ethnicity, race, religion, gender, gender identity/expression, sexual orientation, or disability," including mental disability or mental status. "Psycho" is a word used to demean those who have a mental disorder or are otherwise neurodivergent. In using this word to address Ms. [REDACTED] Detective Ustick made disrespectful remarks regarding what he perceived to be her mental status, a form of ability.

NYPD disciplinary guidelines indicate that for Offensive Language, the mitigated penalty is the forfeiture of one (1) vacation day, the presumptive penalty is the forfeiture of twenty (20) vacation days, and the aggravated penalty is termination. The CCRB recommendation deviates from the guidelines for the charge of Offensive Language for the following reasons:

Detective Ustick has been an officer for fifteen years. He has no disciplinary history. For these reasons, the CCRB deems it appropriate to deviate from the Matrix and recommend Training.

Respectfully submitted,
ABaxter

Ashley Baxter, Esq.
APU Prosecutor
Civilian Complaint Review Board
Administrative Prosecution Unit

Cc: Marissa Gillespie, Esq.